

24SMCV02855 24SMCV02855

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-24

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Case Number: 24SMCV02855 Hearing Date: September 24, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NOTABLE FINANCE, LLC,

Plaintiff,

v.

ROBERT ELLIS, et al.,

Defendants.

Case No.: 24SMCV02885

Hearing Date: September 24, 2026

[TENTATIVE] order RE:

plaintiff's motion to VACATE

DISMISSAL AND ENTER JUDgment

pursuant to conditional

stipulated judgment

BACKGROUND

This is a breach of loan agreement case. Plaintiff Notable Finance, LLC entered into a loan agreement with Defendant Robert Ellis in the amount of \$60,000. Under the terms of the agreement, Ellis agreed to repay the loan within 12 months. Ellis defaulted. Plaintiff sued for breach of contract and common counts, seeking \$56,839 in damages.

The parties settled on September 25, 2024. Defendant agreed to pay Plaintiff \$57,412, to be paid in installments, with the last payment due on August 20, 2027. The parties stipulated that the Court would retain jurisdiction to enforce the agreement pursuant to section 664.6. The parties also stipulated to a conditional dismissal of the complaint. In the event of default, the settlement agreement provides the entire unpaid balance of \$57,412 shall become due and payable less any payments received from Defendant.

This hearing is on Plaintiff's motion to vacate dismissal and to enter judgment in its favor pursuant to the parties' settlement agreement. According to Plaintiff, Defendant paid \$14,400 with the last payment made on February 28, 2026. Since February, Defendant has made no further payments as required under the settlement agreement. Plaintiff asks for judgment to be entered in the amount of \$56,839 plus court costs of \$573 minus credits of \$14,400 for a total of \$43,012.00. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

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Code Civ. Proc. §664.6 provides, in pertinent part, as follows: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement."¿¿

In hearing a Code Civ. Proc. §664.6 motion, the trial court may receive evidence, determine disputed facts, and enter terms of a settlement agreement as a judgment.¿ (Bowers v. Raymond J. Lucia Companies, Inc. (2012) 206 Cal.App.4th 724, 732.) The Court may also receive oral testimony in addition to declarations. (Kohn v. Jaymar-Ruby, Inc. (1994) 23 Cal.App.4th 1530, 1533.) The Court may interpret the terms and conditions of the settlement (Fiore v. Alvord (1985) 182 Cal.App.3d 561, 566), but the Court may not create material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 810).¿

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute.¿ (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.)¿ The party seeking to enforce a settlement "must first establish the agreement at issue was set forth 'in a writing signed by the parties' (§ 664.6) or was made orally before the court.¿ [Citation.]"¿ (Harris v. Rudin, Richman & Appel (1999) 74 Cal.App.4th 299, 304.)¿¿

The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought.¿ (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.)¿ "Parties" under Code Civ. Proc. § 664.6 means the litigants themselves, and not their attorneys, must expressly consent to settlement.¿ (Levy v. Superior Court (1995) 10 Cal.4th 578, 586 ("we conclude that the term 'parties' as used in section 664.6...means the litigants themselves, and does not include their attorneys of record").)¿¿¿

DISCUSSION

The Court's November 13, 2024 order dismissed the case without prejudice. The order states that the Court "shall retain jurisdiction under California Code of Civil Procedure section 664.6. to set aside said dismissal, and enter a Judgment upon showing of default of the terms of the Stipulation."

Plaintiff's counsel has submitted a declaration attesting that Defendant has defaulted on the settlement agreement. As the settlement checks were to be made to counsel, she has personal knowledge about the default.

Plaintiff has also submitted the settlement agreement, which is authenticated by counsel. The settlement agreement shows it was signed by both parties. (Ex. 1 to D'Anna Decl.) Defendant does not argue that the settlement is not valid and enforceable.

Under the settlement agreement, once Defendant defaults, the entire sum of \$57,412 is due and payable, less any amounts paid by Defendant. However, Plaintiff only seeks the pre-judgment amount of \$56,839, and not the settlement sum, less a credit of \$14,400 reflecting payments made by Defendant before his default.

Plaintiff also seeks court costs of \$573. Under paragraph 7 of the settlement agreement, the parties agreed to bear their own attorneys' fees and expenses incurred in connection with the Action except in the event of a default of the settlement agreement. Accordingly, Plaintiff is entitled to seek costs pursuant to paragraph 7.

The Court concludes that there is a valid settlement agreement; Defendant defaulted on the settlement agreement, and pursuant to the terms of the settlement agreement, Plaintiff is entitled to immediate payment as well as costs.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's motion to vacate dismissal and to enter judgment in the amount of \$43,012 in Plaintiff's favor and against Defendant.

IT IS SO ORDERED.

DATED: September 24, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court